

Calendar Line 1

Case Name: *Garcia v. DHL Express (USA), Inc.*
Case No.: 22CV407813

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 10, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All current and former non-exempt employees employed by Defendant Exel Inc. dba DHL Supply Chain (USA) in California at any time during the Class Period [June 1, 2020, through August 1, 2024]. This definition excludes the employees who meet all of the following conditions: (1) were hired by Defendant prior to 2015; and (2) who worked during the Class Period on or after December 15, 2021.

(Declaration of Shaun Setareh in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”), ¶¶ 6(e), 6(h).) The settlement includes a subset group of PAGA Employees, defined as: “all current and former non-exempt employees employed by Defendant Exel Inc. dba DHL Supply Chain (USA) in California at any time during the PAGA Period [December 6, 2021, through August 1, 2024].” (*Id.* at ¶¶ 6(z), 6(bb).)

Defendant will pay a gross settlement amount of \$4,947,000, and this amount includes: attorney fees of up to one-third of the gross settlement amount (\$1,649,000); litigation costs not to exceed \$35,000; a PAGA penalties allocation of \$250,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to PAGA Employees as individual PAGA payments); a service payment of up to \$10,000 to Plaintiff; and settlement administration costs up to \$43,000. (Mot., p. 1; Agreement, ¶¶ 10-13.) The net settlement amount will be distributed to participating Class Members on a pro-rata basis according to the number of workweeks worked during the Class Period, and individual PAGA payments will be distributed according to the number of workweeks worked during the PAGA Period.

(Agreement, ¶¶ 14-15.) The parties propose Simpluris, Inc. (“Simpluris”) as settlement administrator, after receiving multiple bids. (Setareh Decl., ¶ 24; Agreement, ¶ 6(kk).) The Court approves and appoints Simpluris as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted “to a mutually agreeable *cy pres* beneficiary subject to court approval.” (Agreement, ¶ 62(b).) Plaintiff’s counsel states that the parties propose the State Bar Justice Gap Fund as the *cy pres* recipient (Setareh Decl., ¶ 27.) The Court approves of this designation.

In exchange for the settlement, the Class Members agree to release Defendant and related entities and persons from “all claims, actions, or cause of action alleged in the Complaint or that could have been alleged based upon the facts alleged in the Complaint, arising during the Class Period” (Agreement, ¶¶ 6(hh), 6(ff), 30.) PAGA Employees will be deemed to release Defendant and related entities and persons “all claims for civil penalties under the Private Attorneys General Act, California Labor Code section 2698, et seq. that were alleged in the PAGA Notice, the Amended PAGA Notice, and Complaint in the Action or that reasonably could have been alleged based on the factual allegations in the PAGA Notice, the Amended PAGA Notice, and Complaint in the Action, arising during the PAGA Period” (*Id.* at ¶¶ 6(hh), 6(gg), 31.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Settlement Administration

In its order granting Plaintiff’s motion for preliminary approval, the Court approved Simpluris as settlement administrator. On February 21, 2026, Defendant delivered class data to Simpluris, and the Class List contained data with 10,840 Class Members, 7,943 of whom are Aggrieved Employees. (Declaration of Bentley Conn of Simpluris (“Conn Decl.”) ¶ 5.) On February 19, 2026, Simpluris mailed Class Notices to the 10,840 individuals identified as Class Members. (*Id.* at ¶ 9 and Ex. A.) The deadline to request an exclusion, submit a written objection, or submit a dispute was April 21, 2026. (*Id.* at ¶ 14.) As of the date of Mr. Conn’s declaration, May 6, 2026, Simpluris had received three requests for exclusion, one written objection, and one workweek dispute. (*Id.* at ¶¶ 15 –17, Ex. B and C.) Simpluris estimates the average individual settlement share will be approximately \$275.31. (*Id.* at ¶ 20.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. As noted above, one Class Member submitted a written objection as part of the notice process. (Conn Decl., Ex. C.) The Court has reviewed the contents of the written objection and has determined that the objection is directed at the objector’s various personal grievances with the

employer rather than at the fairness of the class and representative action settlement now before the Court. Thus, the written objection provides no reason for the Court to deviate from its prior finding that the settlement is fair and reasonable. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of \$10,000. Plaintiff has provided a declaration describing his participation in this action and his understanding of his responsibilities as class representative. The Court finds that a service award is warranted and the amount requested is reasonable. Accordingly, the service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of \$1,649,000 (one third of the gross settlement amount). (Memorandum, pp. 15:15–21:10; Declaration of Shaun Setareh in Support of Motion for Final Approval (“Setareh Decl.”) ¶¶ 28–36.) Plaintiff's counsel represents that the lodestar for this action is \$637,873, based on 653.8 hours billed at \$250–1,150 per hour. (Setareh Decl., ¶ 37.) This results in a multiplier of 2.6, which is within the range of multipliers found to be reasonable by California courts. The benefits achieved by the settlement justify an award of attorney fees to class counsel. Accordingly, the Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$13,098.24 and provides an itemized list in support. (Memorandum, p.21:11–20; Setareh Decl., ¶ 28 and Ex. 2.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$40,585. (Conn Decl., ¶ 19.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 10, 2027 at 2:30 p.m. in Department 11.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Jacobs v. TransPak, Inc.*
Case No.: 22CV409235

Before the Court is the Petition for Coordination filed by Petitioner Ricardo Villarreal Diaz. The petition seeks to coordinate five wage and hour actions brought by current and former employees against TransPak, Inc. The actions are currently pending in three separate superior courts, and the petition is unopposed. As discussed below, the Court GRANTS the petition for coordination.

I. Background

A. Coordination Proceedings

Petitioner Ricardo Villarreal Diaz filed the Petition for Coordination and Application for Immediate Stay on March 11, 2026. The Judicial Council assigned JCCP No. 5453, titled “TRANSPAK WAGE AND HOUR CASES,” on April 15, 2026. (JCC Letter, April 15, 2026.) The coordination motion judge was assigned by order dated April 28, 2026. (Notice of Order Assigning Coordination Motion Judge, filed May 5, 2026.) The Court set the coordination hearing and stayed all included actions pending that hearing by order dated May 21, 2026. (Notice and Order filed May 27, 2026, Ex. A.)

B. The Included Actions

The petition seeks to coordinate the following five actions. (Petition at pp. 1–2; Memorandum at p. 8.)

1. Villarreal Diaz PAGA Action

Villarreal Diaz v. TransPak, Inc. is PAGA representative action filed on December 12, 2025, in Alameda County Superior Court, Case No. 25CV159503. (Washington Decl., ¶¶ 3–8, Ex. A–B.) Petitioner submitted a notice to the Labor and Workforce Development Agency on